

CHAPTER 16.

An Act to provide for the reduction of the subsidies payable to local authorities in Scotland under section two of the Housing (Financial Provisions) Act, 1924, in certain cases, and in all other respects to bring to an end the power of the Department of Health for Scotland to grant subsidies under sections one and three of the Housing, &c. Act, 1923, and the said Act of 1924; to enable the said Department to undertake to make contributions in certain cases towards losses sustained by local authorities under guarantees given by them for facilitating the provision of houses to be let to the working classes; and for purposes connected with or incidental to the foresaid matters.

[18th May 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Reduction
of subsidies
under 14 &
15 Geo. 5. .
c. 35 in
respect of
houses
subject to
special con-
ditions pro-
vided by
local
authorities
themselves.

1.—(1) The contribution which under section two of the Housing (Financial Provisions) Act, 1924, as that Act (hereinafter referred to as “the Act of 1924”) applies to Scotland, the Department of Health for Scotland (hereinafter referred to as “the Department”) may make or undertake to make to a local authority in respect of a house provided by the authority themselves if the house is subject to special conditions as provided in the Act of 1924, shall, as respects houses provided in pursuance of proposals submitted to the Department after the fifteenth day of December, nineteen hundred and thirty-two, and completed before the thirtieth day of June, nineteen hundred and thirty-five, instead of being a contribution of nine pounds, or, if the house is situated in a rural area, twelve pounds ten shillings, payable annually for a period of forty years, be in every case a contribution of three pounds payable annually for the like period.

(2) Subsection (1) of section three of the Act of 1924 (which sets forth the conditions for compliance with which a local authority must give an undertaking if a house provided by themselves is to be deemed to be subject to special conditions) shall in relation to houses to which the preceding subsection applies have effect—

- (a) as if in paragraph (c) the words “but so nevertheless” to the end of the paragraph were omitted; and
- (b) as if for the condition specified in paragraph (e), so far as relating to the rents to be charged for houses, there were substituted a condition that the rent charged for any of the houses shall not, except with the consent of the Department, exceed six shillings a week, and shall in no case exceed six shillings and sixpence a week;

and houses to which the preceding subsection applies shall be disregarded for the purposes of any calculation of rents of other houses to be made under the said paragraph (e).

2. Save for contributions which the Department may make to a local authority in accordance with the provisions of the preceding section, no contributions shall be made by the Department under section one or section three of the *Housing, &c. Act, 1923*, or under the Act of 1924—

Discontinu-
ance of
subsidies
under 13 &
14 Geo. 5.
c. 24 and
14 & 15 Geo.
5. c. 35.

- (a) towards expenses incurred in providing any house unless it has been provided in pursuance of proposals submitted to the Department under the said Acts before the sixteenth day of December, nineteen hundred and thirty-two; or
- (b) towards expenses incurred by a local authority in promoting the construction of any house unless such expenses have been incurred in consequence of an undertaking given by the authority before the said sixteenth day of December in accordance with proposals approved by the Department under the said Acts:

Provided that, where plans and specifications of a house in respect of which a local authority have undertaken to give assistance under the said Acts were submitted to the authority before the sixteenth day of

December, nineteen hundred and thirty-two, and the house is completed before the thirty-first day of March, nineteen hundred and thirty-four, the Department may, notwithstanding that the undertaking may not have been given by the authority before the said sixteenth day of December, treat the undertaking for the purposes of paragraph (b) of this section as if it had been so given.

Power of
Department
to reim-
burse part
of losses
sustained
under
guarantees
to building
and other
societies.
15 & 16
Geo. 5.
c. 15.

3.—(1) Where a local authority submit to the Department proposals for guaranteeing, in exercise of the authority's powers under paragraph (b) of subsection (1) of section seventy-five of the *Housing (Scotland) Act, 1925*, the repayment to a society of advances made by the society to any of their members for the purpose of enabling them to build or acquire houses intended to be let to persons of the working classes, if the Department are satisfied that the guarantee extends only to the principal of, and interest on, the amount by which the sum to be advanced by the society exceeds the sum which would normally be advanced by them without any such guarantee, and that the liability of the local authority under the guarantee cannot be greater than two-thirds of that principal and interest, the Department, if they approve the proposals, may, with the consent of the Treasury, undertake to reimburse to the local authority not more than one-half of any loss sustained by them under the terms of the guarantee:

Provided that any proposals made to the Department under this section shall—

- (a) include such particulars as they may direct as to the number and type of the houses intended to be built or acquired and the approximate size of them measured in superficial feet; and
- (b) make provision for securing that, except in so far as the Department may in any particular case dispense with the requirements of this paragraph,—
 - (i) the number of such houses in relation to the area occupied or intended to be occupied by and in connection with them will not exceed the rate of twelve to the acre; and
 - (ii) every such house will be provided with a fixed bath in a bath-room.

(2) Any sum payable by way of reimbursement to a local authority in pursuance of an undertaking given under this section shall be defrayed out of moneys provided by Parliament.

4. This Act may be cited as the Housing (Financial Provisions) (Scotland) Act, 1933, and shall extend only to Scotland. Citation and extent.

CHAPTER 17.

An Act to enable courts to disqualify for keeping dogs persons convicted of cruelty to them.

[18th May 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Any court before which a person is convicted under the Protection of Animals Act, 1911, of an offence of cruelty to a dog may order him to be disqualified for keeping a dog and for holding or obtaining a dog licence for such period as the court thinks fit.

Power to disqualify persons convicted of cruelty to dogs.

(2) A person who by virtue of any such order is so disqualified as aforesaid may appeal against the order in the same manner as against a conviction, and the court may, if it thinks fit, pending the appeal, suspend the operation of the order.

1 & 2 Geo. 5.
c. 27.

(3) Where a person who is disqualified by virtue of an order under this section is the holder of a dog licence, the licence shall be suspended so long as the disqualification continues in force and shall, during the time of suspension, be of no effect.

(4) If any person who is disqualified by virtue of an order under this section keeps a dog or applies for or

obtains a dog licence while he is so disqualified, he shall be liable on summary conviction to a fine not exceeding twenty-five pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

Power to
remove
disqualifica-
tion.

2. A person who, by virtue of an order under this Act, is disqualified for keeping a dog and for holding and obtaining a dog licence may, at any time after the expiration of six months from the date of the order, and from time to time, apply to the court by which the order was made to remove the disqualification, and on any such application the court may, as it thinks proper, having regard to the character of the person disqualified and his conduct subsequent to the order, the nature of the offence, and any other circumstances of the case, either by order remove the disqualification as from such date as may be specified in the order or refuse the application :

Provided that, where an application under this section is refused, a further application thereunder shall not be entertained if made within three months after the date of the refusal.

Interpreta-
tion.
30 & 31 Vict.
c. 5.

3. In this Act the expression " dog licence " means a licence under the Dog Licences Act, 1867, and the expression " keep " has the same meaning as in that Act, and so much of section eight of that Act as relates to the method of determining by whom a dog is kept shall apply accordingly.

Short title
and citation.
11 & 12
Geo. 5. c. 14.

4.—(1) This Act may be cited as the Protection of Animals (Cruelty to Dogs) Act, 1933, and the Protection of Animals Act, 1911, the Protection of Animals Act (1911) Amendment Act, 1921, and this Act may be cited together as the Protection of Animals Acts, 1911 to 1933.

(2) This Act shall not extend to Scotland or to Northern Ireland.

